

Case for Presidential Pardon — Samurai Wallet Developers

Samurai Wallet Developers — Data Room Briefing

Prepared for President Donald J. Trump and White House Staff

July 2026

DATA ROOM

Case for Presidential Pardon

Keonne Rodriguez and **William Lonergan Hill**

Co-Founders of Samurai Wallet



Bill and Keonne

Source imagery: freesamurai.com / billandkeonne.org

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Full and unconditional presidential pardons — including relief from supervised release, fines, and related obligations.

Contents

- 01 One-Page Executive Summary
- 02 Instrument of Clemency (Document for Signature)
- 03 How to Use This Data Room
- 04 The Developers — Who They Are
- 05 Families, Letters, and Human Cost
- 06 What Samurai Wallet Was — and Was Not
- 07 Case Chronology (Exhaustive)
- 08 Unique Infographics — Facts at a Glance
- 09 Legal Analysis Part I — Devil’s Advocate (Full Candor)
- 10 Legal Analysis Part II — Strongest Arguments for Pardon
- 11 Legal Analysis Part III — Additional Supporting Arguments
- 12 FinCEN Guidance, Brady Disclosure, and Fair Notice
- 13 Policy Alignment — Ending Regulation by Prosecution
- 14 Precedent Map — CZ, Ulbricht, BitMEX, and Related Clemency
- 15 President’s Public Angle — Talking Points, Draft Posts, Press Q&A
- 16 President’s Private Angle — Strategic Considerations
- 17 Political Breakdown — Constituencies, Midterms, Stand With Crypto
- 18 What Supporters Can Offer — Photo Ops, Amplification, Coalition
- 19 Bold Re-Framing — Technology, Privacy, and American Leadership
- 20 Video Evidence Index (Linked / QR)
- 21 Photographic Record
- 22 Staffer FAQ and Rapid Brief Cards
- 23 Implementation Checklist for the Attorney General
- 24 Sources, Citations, and Primary Documents
- 25 Appendices

Most Bitcoin users don’t know what their wallet reveals. Privacy assumptions may not hold up. The Samurai motive was to change that — private wallet intelligence without sacrificing the privacy users are trying to protect.

01 One-Page Executive Summary

Recommendation

Grant **full and unconditional presidential pardons** to **Keonne Rodriguez** (sentenced to five years) and **William Lonergan Hill** (sentenced to four years) for all offenses arising from the development, marketing, and operation of Samurai Wallet — including conspiracy to operate an unlicensed money transmitting business under 18 U.S.C. § 1960 / § 371 — and direct the Attorney General to vacate remaining supervised release, fines, and related obligations.

Who they are

Keonne Rodriguez (~37, Harmony, Pennsylvania) and William “Bill” Lonergan Hill (67, U.S. national previously residing in Portugal) are software developers and co-founders of Samurai Wallet, a non-custodial Bitcoin privacy application launched in 2015. They are first-time federal offenders. They built tools so ordinary users could reduce the public leakage of Bitcoin’s transparent ledger — not so that anyone else would hold or move their money.

Core facts White House staff must know

- **Non-custodial:** Users retained private keys. Developers did not accept or transmit customer funds as a financial intermediary.
- **Privacy features:** Whirlpool (CoinJoin) and Ricochet (optional hops) were designed to reduce on-chain linkability on a public blockchain.
- **Scale cited by DOJ:** More than 80,000 BTC (over \$2 billion notional at times cited) passed through privacy features; DOJ alleges \$237+ million in criminal proceeds among that activity; developers forfeited approximately **\$6.37 million** in fees.
- **Plea posture:** Both pleaded to the lesser unlicensed money-transmission conspiracy; the more serious money-laundering conspiracy count was dismissed.
- **Sentences (Nov 2025):** Rodriguez — 5 years + \$250,000 fine + 3 years supervised release; Hill — 4 years + \$250,000 fine + 3 years supervised release.
- **FinCEN:** On August 23, 2023 — six months before indictment — senior FinCEN representatives told prosecutors that non-custody would **strongly suggest** Samurai was **not** a money services business. That advice was disclosed to the defense only on April 1, 2025.
- **Presidential awareness:** On December 15, 2025, President Trump stated he had heard of the case and would look into it, directing Attorney General Pam Bondi’s attention.

Why a pardon is warranted

- It restores the custody line that FinCEN guidance has long used to separate software authors from regulated transmitters.
- It protects First Amendment interests in publishing code and prevents a chilling effect on U.S. open-source and privacy engineering.
- The punishment is disproportionate for first-time developers whose users — not the developers — controlled funds.
- It aligns with the Administration’s rejection of regulation-by-prosecution and with prior crypto-related clemency (including CZ and Ross Ulbricht).
- Political marginal cost is low; upside with 52+ million U.S. crypto owners, libertarians, and independents is high.

Bottom line: This is the document the President can sign. The politics work. The morals work. The legal record — including FinCEN’s own advice — supports correction.

02 Instrument of Clemency — Document for Signature

The following instrument is drafted for immediate use. It is styled for formal presentation and signature. Staff may attach it to a pardon warrant package or issue it as an Executive grant of clemency. Alternate shorter warrant language follows the primary grant.

EXECUTIVE GRANT OF CLEMENCY

Full and Unconditional Pardons

By the authority vested in me as President by the Constitution and the laws of the United States of America, including Article II, Section 2, Clause 1 of the Constitution, I hereby grant clemency as follows:

Section 1. Pardons Granted.

I hereby grant a full, complete, and unconditional pardon to **Keonne Rodriguez** and to **William Lonergan Hill** for any and all offenses against the United States arising out of, relating to, or connected with the development, publication, marketing, maintenance, or operation of Samourai Wallet and related software, services, domains, or applications, including without limitation any offense charged or chargeable under Title 18, United States Code, Sections 371, 1956, and 1960, and any related conspiracy, aiding-and-abetting, forfeiture, fine, or supervised-release condition arising from *United States v. Rodriguez & Hill*, No. 1:24-cr-00082 (S.D.N.Y.).

Section 2. Restoration of Rights.

This pardon restores all civil rights forfeited as a result of the convictions described herein, to the fullest extent permitted by law, including rights to vote, serve on juries, and hold public office where those disabilities arose solely from these federal convictions.

Section 3. Relief from Remaining Obligations.

The Attorney General shall take all necessary and appropriate actions to implement this grant of clemency, including causing the immediate release of the pardoned individuals from federal custody if still confined; vacating any remaining term of supervised release; remitting unpaid fines, assessments, and interest arising from these convictions; and coordinating with the Bureau of Prisons and relevant components to effectuate this Order without delay.

Section 4. Forfeiture and Property.

To the extent consistent with law and the equities of the case, the Attorney General is authorized to review and, where appropriate, recommend remission or mitigation of forfeiture judgments connected solely to Samourai Wallet fee income already addressed by prior payments, and to ensure no further collection actions proceed against the pardoned individuals for amounts remitted by this clemency.

Section 5. Effective Date.

This Executive Grant of Clemency is effective immediately upon signature.

DONE at the City of Washington, this ____ day of _____, 2026.

DONALD J. TRUMP

President of the United States

Alternate Short-Form Pardon Warrant (for package insert)

TO ALL TO WHOM THESE PRESENTS SHALL COME, GREETING:

Whereas Keonne Rodriguez and William Lonergan Hill were convicted in the United States District Court for the Southern District of New York of conspiracy to operate an unlicensed money transmitting business arising from software known as Samourai Wallet; and

Whereas I have determined that a full and unconditional pardon is warranted in the interests of justice, fair notice, technological clarity, and the prevention of disproportionate punishment for non-custodial software development;

Now, therefore, be it known that I, Donald J. Trump, President of the United States of America, pursuant to the pardon power conferred by the Constitution, do hereby grant unto Keonne Rodriguez and William Lonergan Hill a full and unconditional pardon for the offenses aforesaid and for all related federal offenses arising from the same conduct, restoring all rights and directing the Attorney General to implement this warrant forthwith.

In testimony whereof I have hereunto set my hand.

Donald J. Trump

President of the United States

Attest: _____

Attorney General / Pardon Attorney (as appropriate)

Staff note: Place this instrument at the front of any physical briefing binder. The executive summary (Section 01) should face the President; the legal candor section (Section 09) should be tabbed for counsel.

03 How to Use This Data Room

This binder is built for speed and trust. It assumes White House staff have limited time and maximum need for accuracy. Every major claim is supported by primary sources listed in Section 24.

Recommended reading order for a 10-minute brief

1. Section 01 — Executive Summary (1 page).
2. Section 02 — Signature-ready Instrument.
3. Section 10 — Three strongest pardon arguments.
4. Section 15 — Public talking points and draft posts.
5. Section 17 — Political upside / midterms map.

Recommended reading order for counsel (45–60 minutes)

1. Section 09 — Devil's advocate (government case, stated without soft-pedaling).
2. Sections 10–13 — Counter-case, FinCEN/Brady, policy alignment.
3. Section 07 — Chronology and docket landmarks.
4. Section 24 — Primary documents.

Truthfulness standard

This data room deliberately presents adverse facts first in the legal analysis. Exaggeration destroys clemency packages. Where the government's theory is strong, it is stated strongly. Where the government's theory conflicts with FinCEN guidance and non-custodial architecture, that conflict is documented with dates and filings.

Related public hubs

- <https://freesamourai.com/> — advocacy and case narrative.
- <https://billandkeonne.org/> — families, petition, letters, fundraising for loved ones.



QR freesamurai.com

Scan: freesamurai.com

04 The Developers — Who They Are

Behind the case captions are two builders with a clear need: to give Bitcoin users tools that match the privacy expectations ordinary people bring to cash and closed banking apps — expectations the transparent blockchain does not automatically provide.

Keonne Rodriguez

Keonne Rodriguez is an American software developer from Florida, later residing in Harmony, Pennsylvania. At approximately 37 years old at sentencing, he co-founded Samurai Wallet in 2015 to promote Bitcoin privacy. He is a family man. Those closest to him describe a person driven by a concrete belief: personal financial data should not be a public spectacle merely because someone chooses open-source money. He spent years shipping mobile wallet software, documenting features, and arguing openly for privacy as a normal security property — not a crime.

In November 2025 he received the statutory maximum five-year sentence on the conspiracy count to which he pleaded, plus a \$250,000 fine and three years of supervised release. He surrendered in December 2025 to begin service of sentence. Family updates have tracked transfers within the federal system, including time associated with FPC Morgantown and later transfer processing.



Keonne Rodriguez

Keonne Rodriguez speaking publicly about the case (imagery via freesamourai.com).

William “Bill” Lonergan Hill

William Lonergan Hill is a 67-year-old U.S. national and talented systems developer with deep roots connected to New York’s technical culture. As co-founder and Chief Technology Officer, he poured more than a decade into non-custodial tooling — the unglamorous work of making privacy features reliable for people who refuse to surrender keys to a third party. He is not a caricature of a “crypto criminal.” He is an older engineer whose career arc looks like countless quiet American builders: solve hard problems, ship code, improve the craft.

Hill was arrested in Portugal at the request of the United States and later extradited. On November 19, 2025, he was sentenced to four years in prison, a \$250,000 fine, and three years of supervised release. He surrendered in January 2026 to begin his sentence. At his age, multi-year federal incarceration is not an abstract deterrent statistic — it is a large fraction of remaining healthy life.

Shared character of the work

What makes both men immediately understandable is not sainthood; it is motive clarity. They saw a ledger that never forgets, and they built software so users could regain a measure of ordinary privacy. They operated for years in public distribution channels. They

did not hide that privacy was the product. That openness is precisely why the legal theory matters: if public privacy software can be retrofitted into “money transmission,” then large categories of American developers inherit criminal risk for writing tools users run themselves.

“It’s like blaming Microsoft for drug cartels downloading and using Excel.” —
Rep. Warren Davidson (R-OH)

05 Families, Letters, and Human Cost



Family

Family imagery via billandkeonne.org — the human stake behind the docket number.

A pardon is a legal act. It is also the difference between children, spouses, and aging parents navigating prison schedules — and a family rebuilding. billandkeonne.org documents the financial and emotional toll with unusual directness.

Financial pressure that continues after the cell door closes

- Each defendant was fined \$250,000 — amounts that accrue consequences while earning capacity is destroyed by incarceration.
- Prior forfeiture related to fees totaled approximately \$6.37 million paid toward a much larger forfeiture judgment framed around traced criminal proceeds.
- Families report crushing legal debt beyond fines; community fundraising goals have been stated in the millions to stabilize households.
- Donations promoted on billandkeonne.org are described as going directly to family members — not intermediaries.

Voices from home

“As a wife, watching my husband fight against the government for what he believes in and knows is right has been heartbreaking. They have taken everything away from us.” — Lauren (Keonne’s wife)

“My husband and I stay in the fight. The fight stays within us.” — Sabrina (Bill’s wife)

Prison mail

Public guidance has listed Keonne Rodriguez’s mailing channel through FCI McKean (letters only; strict facility rules). Supporters have been asked to follow Bureau of Prisons constraints carefully. Updates regarding Bill’s mail preferences have been posted by family channels when appropriate.

The clemency question is not whether families suffer — they do. It is whether the United States should continue that suffering for writing non-custodial privacy code under a legal theory FinCEN itself undermined before charges were filed.

06 What Samurai Wallet Was — and Was Not

Bitcoin’s base layer publishes a permanent transaction graph. That design is a feature for auditability and a hazard for ordinary privacy. Samurai Wallet’s motive was to give users wallet-level intelligence and coordination tools so privacy assumptions would not quietly fail.

What it was

- A mobile Bitcoin wallet architecture in which users controlled keys.
- Optional privacy features: Whirlpool (CoinJoin coordination) and Ricochet (extra hops).
- Software distributed openly over years, including via public app stores during substantial periods of operation.
- A fee model on certain privacy features — DOJ cites roughly \$6+ million in fees over the life of the services.

What it was not

- Not a bank. Not an exchange custody desk. Not a service that took possession of user bitcoin as a principal holding customer deposits.
- Not a darknet market. Not a drug shop. Not a ransomware gang.
- Not a claim that every user was an angel — no open network tool can promise that.

INFOGRAPHIC 01 · CUSTODY IS THE LINE

Why Samourai was software — not a money transmitter

NON-CUSTODIAL SOFTWARE

- User holds private keys
- User signs every transaction
- Developer never accepts funds
- Developer never transmits funds
- FinCEN: anonymizing software ≠ MSB
- Example: Samourai Wallet

CUSTODIAL MONEY TRANSMITTER

- Service holds customer assets
- Service moves funds for users
- Accepts and retransmits value
- BSA/AML obligations apply
- FinCEN: mixer service = MSB
- Example: custodial exchange mixer

Custody line infographic

Infographic 01 — Custody is the regulatory line.

Technical privacy without surrendering privacy

Most Bitcoin users do not know what their wallet reveals. Address reuse, change outputs, exchange KYC bridges, and public explorers can expose salary patterns, donation behavior, and personal networks. Samourai's product thesis was blunt: privacy tooling should improve the user's position without forcing the user to trust a custodian with the stack of coins. That is the opposite of a classic money transmitter, whose business is accepting value and transmitting value for others.



SAMOURAI WALLET

a bitcoin wallet for the streets.

Samurai product



PayNym

Product imagery from freesamourai.com — wallet and PayNym branding.

07 Case Chronology (Exhaustive)



Timeline

Infographic 02 — Compressed timeline.

2015 — Samourai Wallet founded by Rodriguez and Hill as a Bitcoin privacy-focused, non-custodial wallet project.

2017 — Ricochet feature launches, allowing optional intermediate hops to reduce simplistic chain analysis heuristics.

2019 — Whirlpool CoinJoin feature launches. The same year, FinCEN's May 9, 2019 CVC guidance reiterates that an anonymizing software provider is not a money transmitter, distinguishing software suppliers from custodial anonymizing services.

2015-2024 — Years of open operation and public marketing of privacy features. DOJ later cites cumulative volumes exceeding 80,000 BTC through Ricochet/Whirlpool pathways and fee income above \$6 million.

August 23, 2023 — Senior FinCEN representatives speak with prosecutors. According to later Brady disclosure, FinCEN indicated that lack of custody would strongly suggest Samourai was not an MSB under existing guidance, while noting certain coordinator issues might be unaddressed.

February 14, 2024 — Sealed superseding indictment filed in S.D.N.Y. (case later captioned 1:24-cr-00082).

April 24, 2024 — Indictment unsealed. Coordinated arrests: Rodriguez in Pennsylvania; Hill in Portugal. Pre-dawn militarized raid described by family advocates. Servers seized; public service warnings issued.

2024–2025 — Home confinement / pretrial constraints; discovery fights; motions practice. Defense prepares dismissal arguments centered on §1960's text, FinCEN guidance, and fair notice.

April 1, 2025 — Government discloses the August 2023 FinCEN conversation in response to a specific Brady request — roughly a year after unsealing and twenty months after the call.

April 7, 2025 — Deputy Attorney General Todd Blanche issues “Ending Regulation by Prosecution,” stating DOJ will not pursue enforcement that superimposes regulatory frameworks on digital assets via criminal process in the manner described, including approaches to tumbling/mixing licensing theories tied to users’ acts.

May 5, 2025 — Defense letter to the Court details Brady delay and argues the case is a paradigmatic regulation-by-prosecution prosecution conflicting with FinCEN advice.

May 2025 — Motion practice seeking dismissal elaborates that Samourai was anonymizing software FinCEN advised is not a money transmitter.

July 29–30, 2025 — Guilty pleas to Count II (conspiracy to operate a money transmitting business). Count I money-laundering conspiracy dismissed pursuant to plea dispositions. Forfeiture framework entered.

November 6, 2025 — Rodriguez sentenced to 60 months, \$250,000 fine, three years supervised release.

November 19, 2025 — Hill sentenced to 48 months, \$250,000 fine, three years supervised release. Rodriguez begins major media interviews explaining the case.

December 15, 2025 — President Trump, asked about the case, says he has heard about it and will look into it; remarks include direction to Attorney General Pam Bondi.

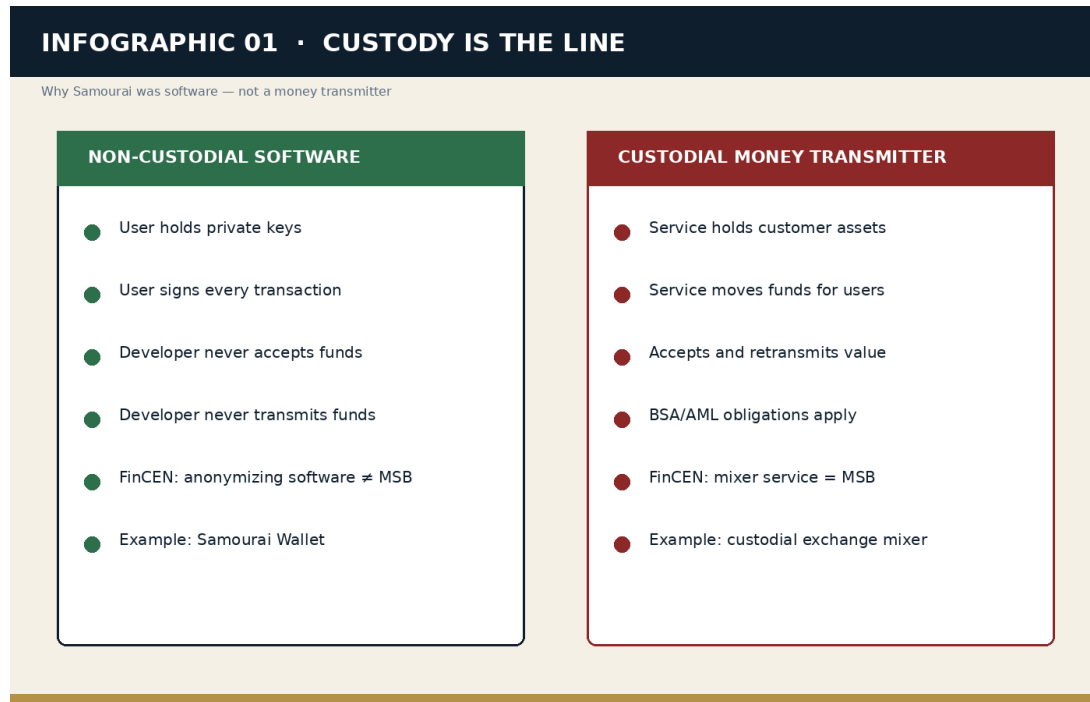
December 19, 2025 — Rodriguez surrenders to begin sentence.

January 2026 — Hill surrenders to begin sentence.

2026 (ongoing) — Family advocacy continues via billandkeonne.org and freesamourai.com; petition drives; conference appearances by Lauren Rodriguez; public pressure for pardon; White House clemency windows watched closely around national commemorations.

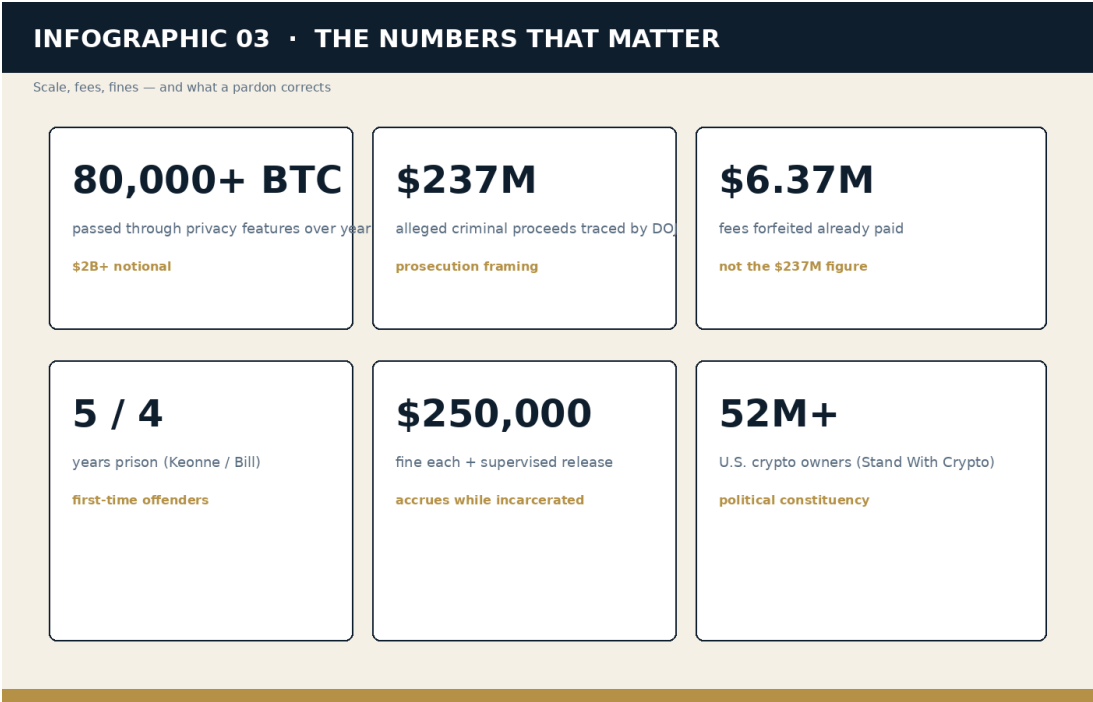
08 Unique Infographics — Facts at a Glance

The following originals were prepared for this data room to compress the custody distinction, timeline, quantitative frame, political matrix, urgency logic, and message architecture.

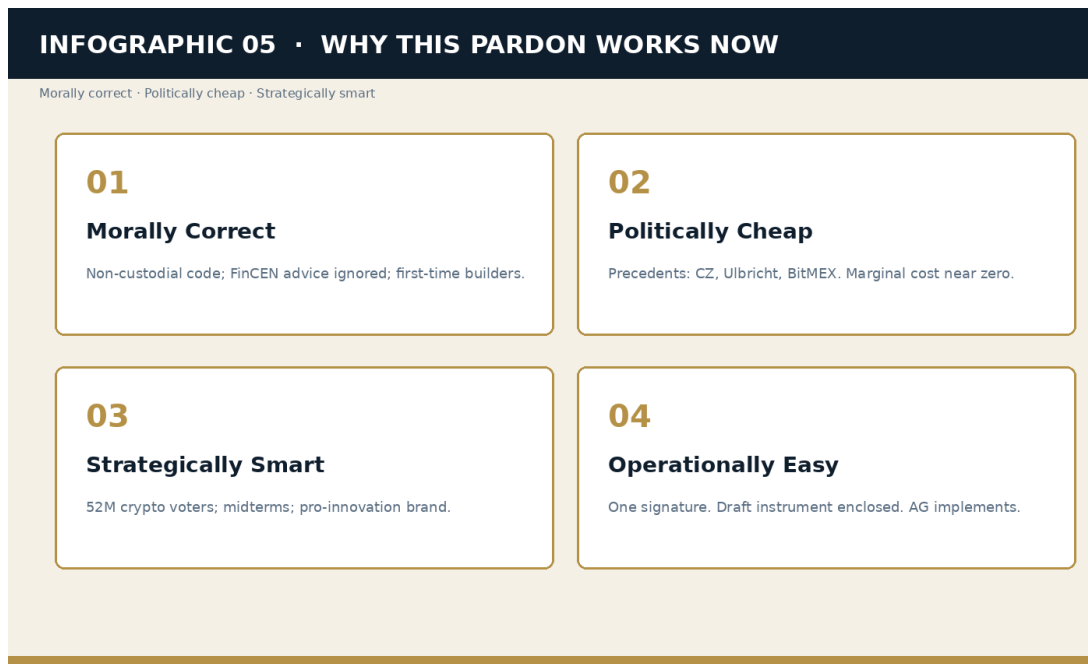


Infographic 01 — Non-custodial software vs. custodial transmitter.

Infographic 01 — Non-custodial software vs. custodial transmitter.



Infographic 04 — Political upside matrix.



Infographic 05 — Why this pardon works now.

Infographic 05 — Why this pardon works now.



Infographic 06 — Message architecture for President, staff, and public.

Infographic 06 — Message architecture for President, staff, and public.

INFOGRAPHIC 02 • CASE TIMELINE

From open-source launch to federal prison



Infographic 02 — Case timeline (full plate).

Infographic 02 — Case timeline (full plate).

09 Legal Analysis Part I — Devil's Advocate

White House counsel must be able to trust this file. This section states the government's case at full strength. No clemency package should hide what opposition research will say.

A. The charged narrative

The United States Attorney's Office for the Southern District of New York described Samourai as a cryptocurrency mixing service that facilitated over \$237 million in illegal transactions. It alleged Rodriguez (CEO) and Hill (CTO) participated in a conspiracy to operate a money transmitting business in which they knowingly transmitted criminal proceeds. The DOJ press release listed predicate sources including drug trafficking, darknet marketplaces, cyber-intrusions, frauds, sanctioned jurisdictions, murder-for-hire schemes, and a child pornography website among proceeds allegedly laundered through the service.

B. Features prosecutors emphasized

- Whirlpool coordinated CoinJoin batches that obscure simple source-of-funds heuristics on a public chain.
- Ricochet added intermediate hops that complicate monitoring.
- From Ricochet's 2017 launch and Whirlpool's 2019 launch, more than 80,000 BTC — valued at over \$2 billion at times referenced — passed through these services.

- Fees exceeded \$6 million in aggregate value by government estimate.

C. Marketing and knowledge evidence the government highlights

Prosecutors alleged active promotion to audiences that included criminal users. Public charging narratives cite Hill responding on a darknet forum that Samurai Whirlpool was a better option to “clean dirty BTC,” and cite a 2020 social-media exchange in which Rodriguez encouraged hackers to send proceeds into Whirlpool. They further cite a WhatsApp explanation of mixing as “money laundering for bitcoin,” and marketing language acknowledging dark/grey-market participants as part of the customer landscape.

These points matter. A serious pardon recommendation does not deny that privacy tools can be misused, or that some communications were ugly and exploitable at sentencing. It asks a different question: whether federal prison for non-custodial software authors is the correct American answer — especially after FinCEN’s pre-indictment advice and the dismissal of the money-laundering conspiracy count.

D. Plea and sentence facts

- Both men pleaded guilty to the §1960 conspiracy count; the §1956 conspiracy count was dropped.
- Forfeiture judgments were entered; approximately \$6.37 million in fees was paid in satisfaction dynamics described in public materials, against a much larger proceeds-framed figure.
- Judge Denise L. Cote imposed five years (Rodriguez) and four years (Hill), each with \$250,000 fines and three years supervised release.
- Investigative partners publicly credited included IRS-CI and FBI, with international cooperation on Hill’s extradition from Portugal.

E. Why this section exists

If a reporter asks, “Didn’t they know criminals would use it?” the honest answer is: prosecutors say yes, and they will quote messages. The pardon theory must therefore rest on architecture, guidance, fair notice, proportionality, speech/code principles, and policy — not on a fairy tale that no bad man ever opened an app.

F. How opposition will frame “\$237 million”

Opposition research will lead with the largest number. Staff should understand the distinction between (1) aggregate notional flow through privacy features, (2) traced criminal proceeds alleged among that flow, and (3) developer fee income. Those are not the same quantity. Conflating them is rhetorically powerful and analytically sloppy. This binder keeps them separate.

INFOGRAPHIC 03 · THE NUMBERS THAT MATTER

Scale, fees, fines — and what a pardon corrects

80,000+ BTC

passed through privacy features over year

\$2B+ notional

\$237M

alleged criminal proceeds traced by DOJ

prosecution framing

\$6.37M

fees forfeited already paid

not the \$237M figure

5 / 4

years prison (Keonne / Bill)

first-time offenders

\$250,000

fine each + supervised release

accrues while incarcerated

52M+

U.S. crypto owners (Stand With Crypto)

political constituency

Numbers

Keep the quantitative frame honest — Infographic 03.

G. Additional candor notes for counsel

Counsel should assume SDNY will argue that coordinator infrastructure, fee collection, and promotional conduct transformed “software” into a “business” transmitting value. Defense filings answer with statutory text (acceptance and transmission), FinCEN’s anonymizing-software category, and the August 2023 call. A pardon decision can accept that litigators fought hard while still concluding the outcome is unjust as a matter of clemency and national technology policy.

The existence of a plea does not moot clemency; presidents routinely pardon after pleas where the equities demand correction, especially when exposure differentials coerced settlement.

Further candor: some Bitcoin privacy engineers disagree with particular Samurai design choices or community tone. Internal industry disagreement is irrelevant to the constitutional and statutory question of whether writing non-custodial wallet code should be a federal felony pathway. Clemency is not an endorsement of every tweet; it is a judgment about criminal punishment.

10 Legal Analysis Part II — Strongest Arguments

Argument One — Non-custody and FinCEN's own line

FinCEN's public guidance — including the May 9, 2019 convertible virtual currency guidance — distinguishes anonymizing **software** providers from custodial anonymizing **services**. The former supply tools users themselves employ; the latter accept and retransmit value. Samourai's architecture placed keys with users. That is not a cosmetic detail; it is the historic boundary between publishing software and operating a money transmitting business.

More damning for continued incarceration: on August 23, 2023, before indictment, FinCEN told prosecutors that non-custody would strongly suggest Samourai was not an MSB. Prosecutors charged anyway. The defense learned of the conversation belatedly through Brady practice. A republic that advertises fair notice should not shrug when the specialist regulator's pre-charge advice cuts against the charging theory.

Argument Two — Code, speech, and the chilling effect

American law has long wrestled with software as expressive engineering. Criminalizing wallet authors because third parties misuse privacy features teaches every U.S. developer a brutal lesson: ship privacy tooling at your personal peril. Talent responds rationally — by leaving, by going dark, or by refusing to build. None of those outcomes makes Americans safer. All of them make American technology weaker.

Argument Three — Proportionality and misclassification

Large financial institutions have faced catastrophic AML failures met primarily with fines and monitorships. Here, first-time software developers received multi-year federal prison terms on a licensing-conspiracy theory after a money-laundering conspiracy count was dropped. Clemency exists precisely for moments when the formal outcome is legal enough to enter judgment and still wrong enough to correct.

These three arguments are sufficient. Everything else in this binder is reinforcement.

Deep dive — Argument One

- Statutory money transmission concepts center on acceptance and transmission of value for others. Wallet software that never takes possession does not “accept” customer bitcoin in the banking sense.
- FinCEN Administrative Ruling FIN-2014-R001 and the 2019 CVC guidance gave industry a map. Samourai's public position tracked that map: no custody, therefore not an MSB.
- If DOJ may freely collapse the software/service distinction whenever privacy features work as advertised, then FinCEN guidance becomes a trap rather than a guide.
- The August 2023 call is not a technicality. It is contemporaneous specialist advice to the very prosecutors who later charged licensing theories.

Deep dive — Argument Two

- Privacy-enhancing technologies — from HTTPS to Signal to disk encryption — always impose investigative costs. The United States did not respond to encryption’s rise by imprisoning protocol designers as a first resort.
- Bitcoin’s transparent ledger creates an unusual privacy deficit relative to cash. Building user-side mitigations is a classic inventive response, not a moral inversion.
- A chilling effect is already reported across crypto engineering communities: developers hesitate to maintain non-custodial privacy repos on U.S. soil.
- First Amendment values do not require worshipping every marketing choice; they do caution against turning publication of tools into a proxy crime for unknown users’ aims.

Deep dive — Argument Three

- Rodriguez received the maximum five years available on the count of conviction; Hill received four. For first-time offenders writing software, that is a heavy hammer.
 - Age magnifies severity for Hill. Family devastation magnifies severity for both.
 - Plea dynamics matter: facing theoretically enormous exposure, defendants settle. Clemency review should not treat a coerced risk-calculus as moral confession that prison is deserved.
 - Comparative justice: if the policy goal is stopping illicit finance, imprisoning two non-custodial developers while sophisticated custodial bad actors often negotiate dollars-first resolutions teaches the wrong lesson about where risk lives.
-

11 Legal Analysis Part III — Additional Arguments

Users include lawful privacy seekers

Journalists, activists, domestic-violence survivors, clergy, and ordinary citizens use financial privacy tools for non-criminal reasons. A legal theory that cannot distinguish architecture from user abuse will over-criminalize the lawful majority.

Staff note: When briefing users include lawful privacy seekers, lead with primary documents in Section 24 rather than social-media summaries.

Open operation for years

A nearly decade-long public product life is hard to square with a story of furtive criminal enterprise. It is easy to square with founders who believed they were complying with published guidance.

Staff note: When briefing open operation for years, lead with primary documents in Section 24 rather than social-media summaries.

International competitiveness

If the United States jails non-custodial privacy engineers, equivalent work migrates to jurisdictions less aligned with American interests. That is a strategic own-goal.

Staff note: When briefing international competitiveness, lead with primary documents in Section 24 rather than social-media summaries.

Senatorial warning

Senators Cynthia Lummis and Ron Wyden criticized the prosecution approach as regulation by prosecution well before later DOJ policy memoranda echoed similar concerns.

Staff note: When briefing senatorial warning, lead with primary documents in Section 24 rather than social-media summaries.

Policy coherence after Blanche Memo

Continuing to warehouse these defendants after DOJ leadership publicly pivoted away from regulation-by-prosecution in digital assets projects confusion, not strength.

Staff note: When briefing policy coherence after blanche memo, lead with primary documents in Section 24 rather than social-media summaries.

Dropped money-laundering conspiracy

The most rhetorically severe count did not remain for judgment. That fact should discipline public description of what was actually adjudicated.

Staff note: When briefing dropped money-laundering conspiracy, lead with primary documents in Section 24 rather than social-media summaries.

Community support as information

Broad Bitcoin-community support is not a substitute for law, but it is a signal that informed technologists view the custody distinction as real.

Staff note: When briefing community support as information, lead with primary documents in Section 24 rather than social-media summaries.

Presidential commitment to end the war on crypto

Clemency here is a concrete proof-point that campaign and governing rhetoric about ending anti-crypto lawfare has operational meaning.

Staff note: When briefing presidential commitment to end the war on crypto, lead with primary documents in Section 24 rather than social-media summaries.

12 FinCEN Guidance, Brady Disclosure, Fair Notice

This section is the credibility core for skeptical counsel.

Published guidance landscape

FinCEN has repeatedly oriented MSB analysis around acceptance and transmission of value. In the 2019 CVC guidance, FinCEN stated that an anonymizing software provider is not a money transmitter, while describing custodial anonymizing services differently. Defense memoranda quote and apply that distinction directly to Samourai's non-custodial design.

The August 23, 2023 conversation

According to the May 5, 2025 defense letter to Judge Berman, senior FinCEN representatives told prosecutors that under FinCEN guidance, Samourai's lack of custody would strongly suggest it was not an MSB. Prosecutors nonetheless charged an unlicensed money-transmission theory months later. Disclosure to the defense occurred on April 1, 2025, after a specific Brady request — not promptly after indictment.

The letter further notes court orders under Rule 5(f) and the Due Process Protections Act requiring prompt Brady disclosure, and cites the Court's individual practices on early production of Brady known at indictment.



QR Brady letter

Scan for CourtListener copy of the May 5, 2025 Brady letter (Doc. 86).

Fair notice

Criminal law requires that ordinary persons and specialized actors have fair warning of what is forbidden. When the lead federal AML regulator's guidance and pre-charge advice point away from MSB status, innovators who follow that map are not cunning outlaws — they are people who read the government's own instructions. Punishing them anyway trains the market to ignore guidance. That is poisonous administrative policy.

Counsel annex — applying guidance to wallet architecture

Walkthrough: user installs wallet; user controls seed; user constructs transactions; optional CoinJoin participants coordinate peer inputs; broadcast occurs on Bitcoin's network;

developers may operate coordination software without ever holding the user's private keys. Each step can be described without the verbs "accept deposits" or "transmit customer balances." Staff should ask prosecutors to identify the precise moment of custodial acceptance. If that moment does not exist, the transmitter theory is a metaphor doing statutory work it cannot bear.

13 Policy Alignment — Ending Regulation by Prosecution

On April 7, 2025, the Deputy Attorney General's memorandum "Ending Regulation by Prosecution" directed a pivot away from using criminal prosecution to impose digital-asset regulatory frameworks that belong to civil regulators — including approaches that treat mixing/tumbling theories as licensing substitutes for the acts of users. Defense counsel immediately argued Samourai was a clean example of the problem the memo described: FinCEN advice ignored, criminal process used to hard-wire a regulatory outcome.

A pardon is the President's cleanest instrument to align outcomes with that policy turn where cases already proceeded to judgment under the prior theory. It is also clearer than asking mid-level prosecutors to rewrite history. Clemency can end the human damage while policy shops finish durable rules.

American leadership in digital assets requires simultaneous seriousness about illicit finance and seriousness about software categories. Those goals do not conflict if custody remains the hinge. They conflict when metaphors ("mixer") replace statutory elements ("accept"/"transmit"). A White House that frees non-custodial developers while still prosecuting true custodial laundering rings looks strong, precise, and adult — not soft on crime.

14 Precedent Map — Related Clemency

Presidential clemency in technology-adjacent cases is not novel in this Administration's orbit. Public reporting has covered clemency or related relief dynamics involving Changpeng "CZ" Zhao (Binance), Ross Ulbricht (Silk Road), and BitMEX founders, among other actions. Whatever one thinks of each matter individually, the political system has already priced the idea that crypto-era prosecutions can be revisited.

Comparative equities favoring Samourai developers

- Non-custodial architecture is a sharper "this is software" claim than many exchange-centered fact patterns.
- FinCEN pre-indictment advice is an unusually strong fair-notice artifact.
- First-time offender profiles and family stakes are sympathetic without fabrication.
- Sentence lengths are concrete and currently being served — clemency has immediate human effect.

Marginal political cost analysis: after higher-profile crypto clemency events, an additional pardon for non-custodial wallet developers is incremental, not foundational. For many voters, it will read as consistency.

15 President's Public Angle



Messages

Key messages

- “They wrote privacy software. Users held the keys. That’s not a bank.”
- “FinCEN’s own advice undercut the charging theory before indictment.”
- “We are ending regulation by prosecution and protecting American builders.”
- “Code is speech. We don’t jail inventors for building tools criminals might misuse — or Excel would be contraband.”

Draft Truth Social / X posts

Draft 1: Today I granted full pardons to Keonne Rodriguez and William Hill, developers of Samurai Wallet. They built Bitcoin privacy tools. Users kept their own keys. America leads in technology — we don’t criminalize our coders for defending privacy.

Draft 2: The war on crypto is over. Jailing software developers for non-custodial privacy code was a Biden-era lawfare special. I fixed it. Free Samurai.

Draft 3: If you need a license to publish wallet software, what’s next — a license to encrypt your hard drive? Common sense is back.

Press Q&A

Q: Didn't their tool hide criminal money?

A: Criminals misuse phones, cars, and spreadsheets. We prosecute criminals. We don't pretend every dual-use tool's author is a money launderer — especially when users, not developers, hold the funds and FinCEN's guidance pointed the other way.

Q: They pleaded guilty. Why pardon?

A: People plea when the risk of trial is crushing. Clemency exists to correct unjust results after judgment, not only before. The money-laundering conspiracy count was dropped. The equities still demand relief.

Q: What about victims of crypto crime?

A: This Administration can pursue true custodial laundering and fraud rings aggressively while refusing to flatten software categories. Precision is strength.

Q: Is this soft on crime?

A: No. Soft on crime is performative chaos. Hard on crime and serious about law is punishing the right defendants for the right elements — not expanding felonies by metaphor.



QR Decrypt Trump coverage

Scan: Decrypt coverage of the President's December 2025 "I'll look at it" remarks.

16 President's Private Angle

This section is written for senior staff, not for the podium.

- Correcting SDNY/Biden-era lawfare narratives remains a resonant governing brand.
- Crypto voters are numerous, cross-pressured, and attentive to whether "war on crypto is over" is real.
- A developer pardon is narratively cleaner than many financial-complex cases.
- Critics will shout; few swing voters will punish a privacy-software pardon after CZ/Ulbricht-era framing already shifted the Overton window.

- Staff who elevate this file look competent: the work is done, the risks are mapped, the signature package is ready.
- Personalist politics reality: the bottleneck has been attention. This binder removes research friction.

Map allies and antagonists before announcement: expect privacy skeptics and some AML hardliners to criticize; expect Bitcoin advocates, portions of the tech right, libertarians, and civil-liberties Democrats (see prior Lummis/Wyden skepticism of the prosecutorial approach) to praise. Pair announcement with a simultaneous line that DOJ will continue to prosecute custodial laundering — denying opponents an “open season for crime” frame.

17 Political Breakdown — Midterms and Crypto Voters

INFOGRAPHIC 04 · POLITICAL UPSIDE MATRIX		
Who gains when the President corrects this case		
CONSTITUENCY	EFFECT	WHY IT MATTERS
Crypto voters (52M+)	Strong	Gains trust; ends 'war on crypto' narrative
Libertarians / independents	Strong	Validates code-as-speech & privacy
U.S. developers / builders	Strong	Stops talent flight offshore
White House staff	Strong	Bulletproof brief; low political cost
Critics of privacy tools	Weakened	Appear punitive / anti-innovation
SDNY theory of liability	Rejected	Regulation-by-prosecution reversed

Politics

Stand With Crypto and allied messaging describe on the order of **52 million** U.S. crypto owners as a mobilizable constituency. Polling covered in 2026 midterms reporting has described crypto holders as motivated, often not strictly partisan, and willing to weight candidates’ digital-asset posture heavily.

Who benefits if the President pardons

- Crypto owners and Bitcoin advocates seeking proof that non-custodial principles are respected.
- Independent and libertarian-leaning voters skeptical of speech/tech prosecutions.
- U.S. developers deciding whether to keep building domestically.

- White House political shop seeking a high-signal, low-complexity delivery item.

Who is constrained / appears weaker

- Architects of regulation-by-prosecution approaches.
- Voices that equated privacy software with money laundering without reckoning with custody.
- Narratives that the Administration's crypto turn was merely donor theater.

Illustrative 2026 battleground attention (Stand With Crypto hub)

- North Carolina — U.S. House District 1
- Nevada — U.S. House District 3
- Pennsylvania — U.S. House Districts 8 and 10
- Iowa — U.S. House District 3
- New York — U.S. House District 17
- Ohio — U.S. House Districts 1 and 9

A pardon will not decide these races alone. It will, however, be legible to the exact issue public Stand With Crypto organizes — and it costs almost nothing in legislative capital compared with statutory fights.

18 What Supporters Can Offer

Photo opportunity concepts

A Rose Garden or Oval Office moment with industry builders — potential invitees commonly discussed in public advocacy circles include major exchange CEOs and Bitcoin policy leaders (e.g., figures of the stature of Brian Armstrong), academics, and family members. Exact attendance should be confirmed by White House Office of Public Liaison; this binder only flags willingness signals from the advocacy ecosystem.

Amplification

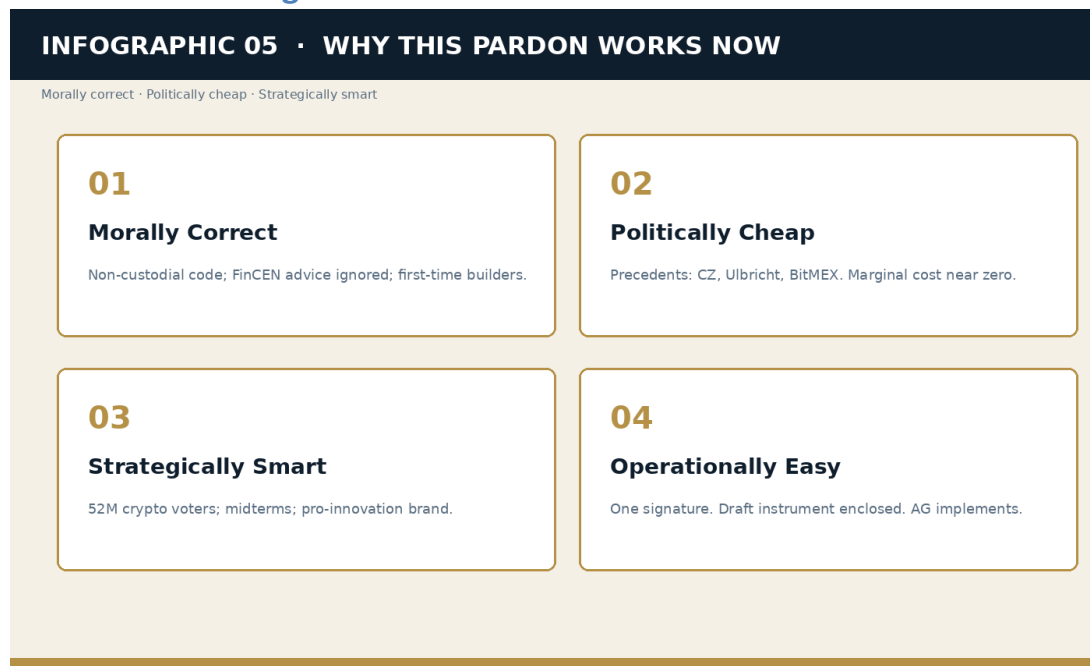
- Podcast and conference circuits already covering the case (family media appearances throughout late 2025–2026).
- Policy organizations (Bitcoin Policy Institute analysis; Coin Center interest historically in developer liability).
- Petition and grassroots sharing via freesamurai.com and billandkeonne.org.

Coalition efficiency

Some advocates propose bundling related developer clemency matters for a single announcement. That can enlarge the coalition while still requiring only one presidential decision cycle. Staff should evaluate bundling separately; Samourai stands on its own facts.

If a photo op proceeds, prioritize families and engineers over party politicians in the first frame. The image should say “builders restored,” not “faction rewarded.” Prepare a 90-second presidential read mentioning non-custody, FinCEN, and ending lawfare.

19 Bold Re-Framing



Why now

This case is not primarily a money-laundering parable. It is a technological progress parable colliding with an aggressive prosecutorial category expansion.

Blockchains buy transparency and global settlement; they also create a new invention problem: how to restore ordinary privacy without re-introducing trusted custodians. Samurai’s founders answered with non-custodial tooling. That is what inventors do.

History is not shy about governments prosecuting people who moved the knowledge frontier — from Socrates to Galileo to modern encryption fights. The United States’ comparative advantage is that it can choose differently: back the builders, punish violence and fraud, and keep categories honest.

Technology wins wars and compounds prosperity. Driving elite coding talent underground or offshore is how a confident nation becomes a stagnant one. A pardon here is not nostalgia; it is industrial policy for human capital, expressed through the Constitution’s clemency valve.

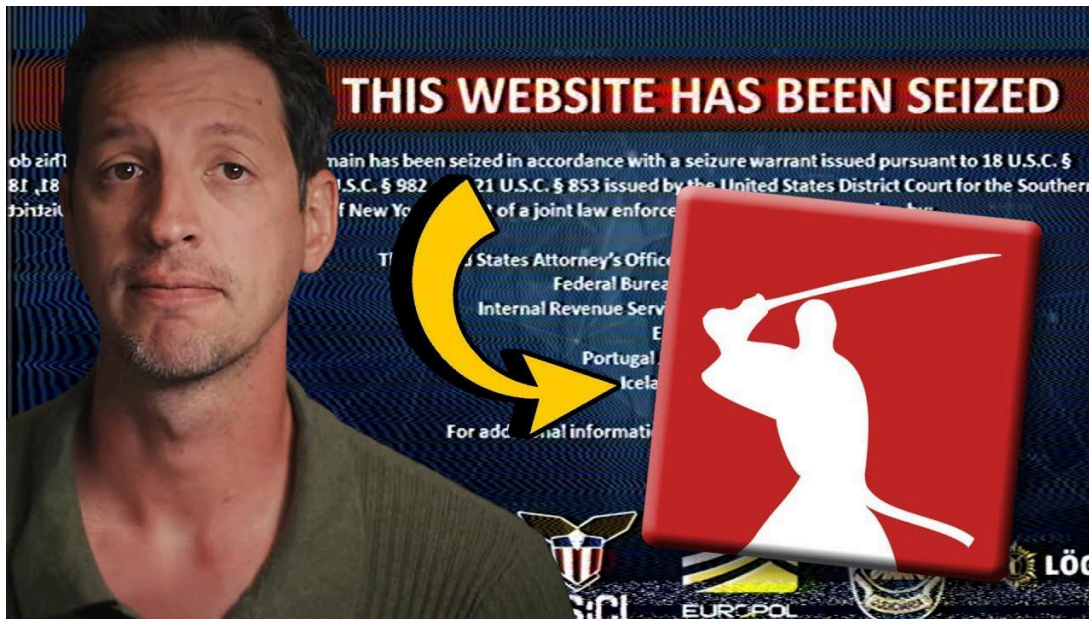
Say aloud: private wallet intelligence without sacrificing the privacy you are trying to protect. That sentence is the product ethic. It is also the constitutional ethic — security against unreasonable exposure in a world where the default ledger is glass.

20 Video Evidence Index (Linked / QR)

Embedded autoplay video inside PDF files is unreliable across readers. This data room therefore provides a verified video index with thumbnails, captions, clickable URLs, and QR codes — suitable for binder use and for staff phones.

Keonne media appearance (Kim Iversen ecosystem / related upload).

URL: <https://www.youtube.com/watch?v=8allMzSExMU>



thumb



qr

Thumbnail via YouTube; QR opens the video URL.

[Advocacy / interview clip indexed from billandkeonne.org embeds.](#)

URL: <https://www.youtube.com/watch?v=lHzYteijFFM>



thumb



qr

Thumbnail via YouTube; QR opens the video URL.

Case explanation video embed from advocacy site.

URL: <https://www.youtube.com/watch?v=m5mBCmywnA4>



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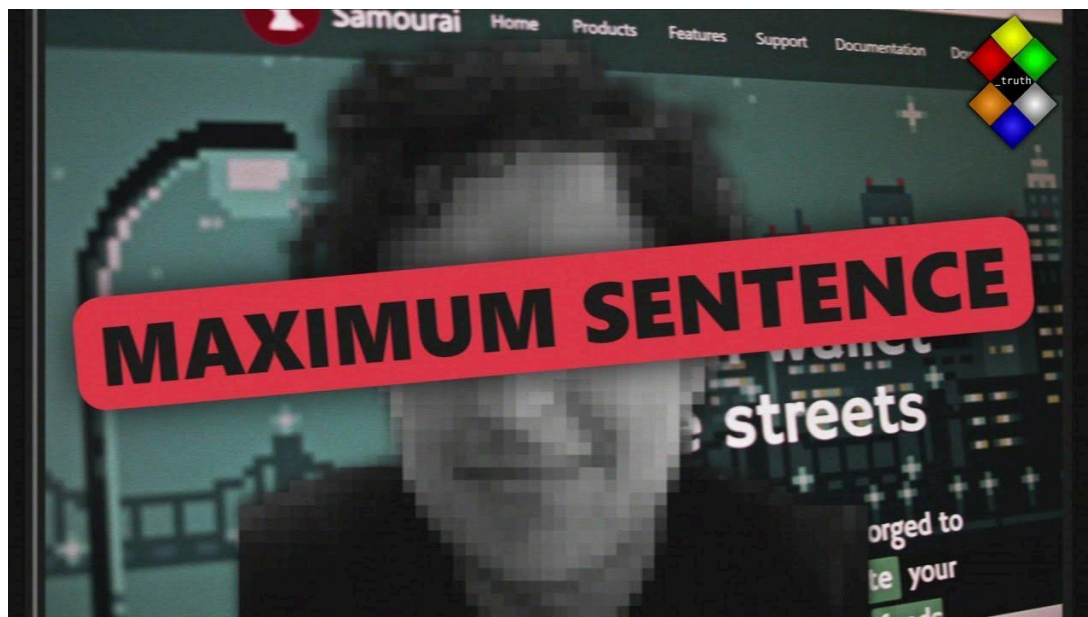


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Thumbnail via YouTube; QR opens the video URL.

Developer / advocacy interview.

URL: <https://www.youtube.com/watch?v=BR6vcplaFus>



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qr

Thumbnail via YouTube; QR opens the video URL.

Public conversation on the prosecution's stakes.

URL: <https://www.youtube.com/watch?v=Fshsk8MCAf4>



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Thumbnail via YouTube; QR opens the video URL.

[Additional interview embed from advocacy hub.](#)

URL: <https://www.youtube.com/watch?v=Q6ulVklLUFU>



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Thumbnail via YouTube; QR opens the video URL.

Community discussion video.

URL: https://www.youtube.com/watch?v=Ft_WgUh56xw



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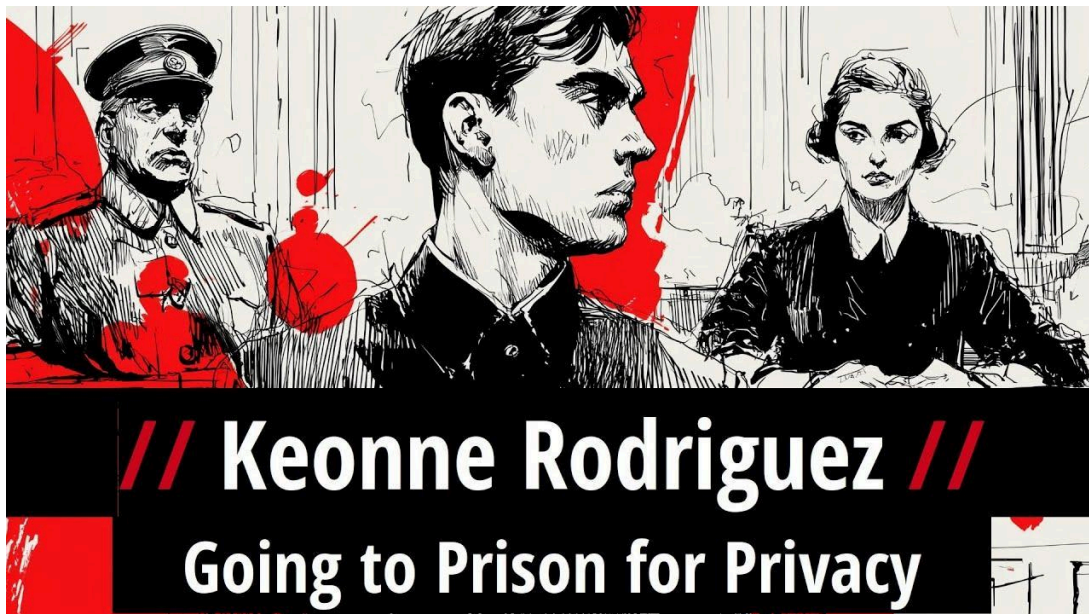


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Thumbnail via YouTube; QR opens the video URL.

Pardon advocacy media.

URL: <https://www.youtube.com/watch?v=UcbFSF7fWn8>



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Thumbnail via YouTube; QR opens the video URL.

Extended interview material.

URL: <https://www.youtube.com/watch?v=X5AXk4bZUBA>



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Thumbnail via YouTube; QR opens the video URL.

Further public testimony-style interview.

URL: https://www.youtube.com/watch?v=w9Qr_OmpnMo



thumb



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Thumbnail via YouTube; QR opens the video URL.

Also indexed from billandkeonne.org

- Rumble: Keonne interview — “He built a privacy app, now he’s going to prison.”



QR Rumble

- DecryptMedia / X post covering presidential remarks.
- Family update posts via @leamuirleyn and @keonne on X.

21 Two amazing developers that wanted to privacy for all crypto user at large

Photographs and stills below are drawn from freesamourai.com, billandkeonne.org, and public advocacy materials already used in community briefing packets.









22 Staffer FAQ and Rapid Brief Cards

What is the ask?

Full unconditional pardons for Rodriguez and Hill, with AG instructions to release, end supervised release, and remit fines.

What did they build?

Non-custodial Bitcoin privacy wallet software (Whirlpool/Ricochet features).

Did they hold customer funds?

No — that is the central architectural fact.

What did FinCEN say?

Aug 23, 2023: non-custody strongly suggests not an MSB; disclosed to defense April 1, 2025.

What were they sentenced for?

Conspiracy to operate an unlicensed money transmitting business; ML conspiracy dropped.

Sentences?

5 years + \$250k (Keonne); 4 years + \$250k (Bill); 3 years supervised release each.

Presidential status?

Dec 15, 2025: “I’ve heard about it, I’ll look at it,” with AG present.

Political cost?

Low marginal cost after prior crypto clemency; high signaling value to crypto voters.

Biggest landmine?

Ugly marketing quotes DOJ highlights — address with dual-use + architecture + guidance, not denial.

Best closer?

America should punish cartels and custodial launderers — not imprison non-custodial wallet developers.

Rapid brief method

Open with the custody sentence. Offer FinCEN date without prompting. Acknowledge DOJ's \$237M claim and immediately separate fees (\$6.37M) from proceeds rhetoric. Close with the signature-ready instrument. Keep jargon low; keep dates high; keep families visible but not maudlin.

23 Implementation Checklist for the Attorney General

1. Receive signed instrument / warrant from the President.
2. Transmit to Office of the Pardon Attorney and Bureau of Prisons leadership the same day.
3. Identify current facilities / transfer centers for both individuals; issue release instructions.
4. File or lodge necessary notices in S.D.N.Y. criminal docket reflecting presidential pardon.
5. Vacate supervised release terms; notify probation offices.
6. Remit unpaid fines/interest; halt collections.
7. Coordinate public affairs line with White House Communications to avoid mixed messages.
8. Preserve a litigation-hold style archive of the clemency package for historical record.

If one defendant is in transit between facilities, BOP should treat the warrant as immediately effective and avoid delaying release for clerical convenience. Designate a single DOJ point of contact empowered to cut through regional confusion within two hours of signature.

24 Sources, Citations, and Primary Documents

- DOJ / SDNY sentencing press release (Nov 19, 2025): [justice.gov usao-sdny Samurai founders sentenced](https://www.justice.gov/usao-sdny/samurai-founders-sentenced).
- IRS-CI mirror release on sentencing and forfeiture figures.
- Defense Brady letter, May 5, 2025, Doc. 86 — CourtListener RECAP [gov.uscourts.nysd.620167.86.0.pdf](https://www.courtlistener.com/dockets/620167/86/0/).
- Defense motion-to-dismiss briefing on FinCEN anonymizing software guidance (RECAP filings).
- FinCEN Guidance FIN-2019-G001 (May 9, 2019) — anonymizing software provider not a money transmitter.
- FinCEN Administrative Ruling FIN-2014-R001.
- billandkeonne.org — family narrative, sentences, petition, donation channels, mail guidance, timeline updates.
- freesamurai.com — advocacy narrative, media embeds, brand assets.

- Decrypt — “Trump Says He Will ‘Look At’ Pardon for Samurai Bitcoin App Dev” (Dec 2025).
- Bitcoin Magazine / Crypto Briefing / CoinEdition contemporaneous reporting on presidential remarks.
- Bitcoin Policy Institute / Bitcoin Magazine legal analysis on pardoning Samurai developers and non-custodial code.
- Stand With Crypto — midterms voter hub and ~52 million crypto owner constituency messaging; battleground race list.
- Senators Lummis & Wyden letter criticizing regulation-by-prosecution dynamics (referenced in defense filings).
- Deputy Attorney General memorandum “Ending Regulation by Prosecution” (Apr 7, 2025), as quoted in defense letter.
- Rep. Warren Davidson quotation comparing misuse of general-purpose software tools.
- Cato Institute commentary characterizing the moment as chilling for financial privacy (as quoted by advocates).

Verification hygiene: numbers in this binder prefer DOJ press figures for adverse claims and defense primary filings for FinCEN/Brady claims. Where secondary journalism is used (presidential quotes, political polling), it is labeled as reporting.

25 Appendices

Appendix A — Quotable lines

“It’s like blaming Microsoft for drug cartels downloading and using Excel.” — Rep. Warren Davidson (R-OH)

“A chilling moment for financial privacy.” — Cato Institute (as quoted by advocates)

“I’ve heard about it, I’ll look at it.” — President Donald J. Trump, Dec 15, 2025

Most Bitcoin users don’t know what their wallet reveals. Privacy assumptions may not hold up. The Samurai motive was to change that.

Appendix B — Petition

Public petition hub referenced by advocacy sites: “Stand Up for Freedom: Pardon the Innocent Coders” on Change.org (linked from freesamurai.com / billandkeonne.org). Signatures are political evidence of intensity, not a legal element.



QR petition

Appendix C — Closing ask to the President

Mr. President: the country can have serious anti-money-laundering enforcement without imprisoning non-custodial privacy developers against the grain of FinCEN's own guidance. The instrument is drafted. The equities are strong. The politics are favorable. The families are waiting.

Sign the pardons. Free Keonne Rodriguez. Free William Lonergan Hill.



Appendix D — Extended Fact Base

- **Defendants:** Keonne Rodriguez, Harmony, PA; William Lonergan Hill, U.S. national arrested in Portugal.
- **Case caption:** United States v. Rodriguez & Hill, No. 1:24-cr-00082 (S.D.N.Y.).
- **Judges (public docket history):** Matter proceeded before S.D.N.Y. judges including references in filings to Judge Berman at Brady-letter stage and sentencing by Judge Denise L. Cote.
- **Counts:** Indictment included money-laundering conspiracy and unlicensed money-transmission conspiracy theories; plea resolved on transmission conspiracy; ML conspiracy dismissed.
- **Whirlpool:** CoinJoin coordination feature launched 2019.
- **Ricochet:** Optional hop feature launched 2017.
- **Fee forfeiture paid:** Approximately \$6,367,139.69.
- **Criminal proceeds figure used by DOJ:** Over \$237 million; forfeiture order framed with \$237,832,360.55 figure in public materials.
- **Fines:** \$250,000 each.
- **Supervised release:** Three years each.
- **Surrender:** Rodriguez Dec 2025; Hill Jan 2026.
- **Advocacy hubs:** freesamurai.com; billandkeonne.org.

Appendix E — FinCEN Line-by-Line Staff Guide

Acceptance

MSB money transmission analysis asks whether a person accepts value from one person. Non-custodial wallet software that never takes possession of user bitcoin does not “accept” deposits the way an exchange hot wallet does.

Transmission

Transmission concerns sending value to another person or location for the customer. When the user signs and broadcasts, the user transmits on Bitcoin's peer network.

Anonymizing software provider

FinCEN's 2019 CVC guidance states an anonymizing software provider is not a money transmitter. That sentence is the industry's bright line. Clemency restores respect for it.

Anonymizing services provider

By contrast, a custodial anonymizing service that accepts and retransmits cryptocurrency is treated as money transmission. DOJ charging rhetoric often collapses these categories; staff should refuse the collapse.

August 23, 2023 call

Specialist regulators told prosecutors non-custody strongly suggests not an MSB. That contemporaneous advice is the fair-notice crown jewel of this file.

Brady delay

Disclosing that call only after a specific April 1, 2025 request — long after indictment — is why counsel and civil-liberties observers recoiled.

Blanche Memo alignment

DOJ's April 7, 2025 policy turn against regulation-by-prosecution makes continued incarceration here a coherence problem. Pardons solve coherence problems cleanly.

Practice drill: ask a hostile interlocutor to point to the block of bitcoin the defendants held in custody for a customer. If they cannot, they are arguing metaphors, not elements.

Appendix F — Advocacy Timeline Detail (2025–2026)

- **Nov 6, 2025:** Keonne sentenced to 5 years and \$250,000; surrender date set.
- **Nov 11, 2025:** Change.org petition push begins in earnest around family advocacy networks.
- **Nov 16, 2025:** Lauren marks wedding anniversary amid impending surrender — human frame spreads on social channels.
- **Nov 19, 2025:** Keonne appears on Kim Iversen show; Bill sentenced to 4 years and \$250,000.
- **Dec 2025:** Keonne media blitz reaches large podcast/YouTube audiences before surrender.
- **Dec 15, 2025:** President Trump publicly says he will look at the pardon; AG Bondi present in coverage.
- **Dec 19, 2025:** Keonne surrenders (FPC Morgantown referenced in family updates).
- **Jan 2026:** Bill surrenders to begin sentence.

- **Apr 9, 2026:** Lauren attends BitBlockBoom; community support visible.
- **Apr 27, 2026:** Lauren at BTC Las Vegas; pardon advocacy continues.
- **May 2026:** Lauren speaks at EOTS Freedom event in Michigan.
- **Jun 11, 2026:** BTC Prague organizers play Lauren clip on precedent stakes; Keonne transfer-center update posted.
- **Jul 4, 2026:** Reporting on White House weighing large commemorative pardon sets
-

Appendix G — Counter-Argument War Game

Attack: “They marketed to criminals.”

Counter: Some cited messages are bad. Dual-use tools attract dual-use marketing mistakes. The constitutional and statutory question remains custody and guidance — not whether every promotional sentence was wise.

Attack: “\$237 million laundered.”

Counter: Separate traced-proceeds allegations from developer fees (~\$6.37M paid) and from total notional privacy-feature volume. Refuse number conflation.

Attack: “They called it money laundering.”

Counter: Informal chat hyperbole is not a FinCEN classification. The regulator’s formal categories and the Aug 2023 call carry more weight than WhatsApp shorthand.

Attack: “Plea = guilt = no pardon.”

Counter: Presidents pardon after pleas constantly. Exposure leverage explains pleas. Clemency reviews equities.

Attack: “You’ll unleash crypto crime.”

Counter: Announce simultaneously that custodial laundering remains a priority. Precision enforcement is the adult posture.

Attack: “Why these two, not others?”

Counter: Because the non-custody + FinCEN-advice record is unusually strong, sentences are active, and the developer-chilling effect is immediate.

Attack: “SDNY will be furious.”

Counter: Article II clemency anticipates executive disagreement with particular prosecutions. That is a feature.

Attack: “Families fundraising looks political.”

Counter: Families always look political when the state cages a spouse. That is not a reason to keep the cage locked.

Appendix H — Closing

Sign the pardons. Restore the builders. Keep the custody line honest.

End of Data Room — July 2026 — For the President and White House Staff

26 Addendum — Additional Decisive Facts

Supplement to the July 2026 Data Room. Nothing in the preceding binder is altered; this addendum adds corroborating facts, comparative case law, and closing arguments for final review.

One sentence for the President: every fact below points the same direction — the government prosecuted authorship of software, not the handling of anyone's money, and its own regulator said so before the indictment was returned.

26.1 The Government's Own Position Has Already Moved

- **DOJ policy shift (April 7, 2025).** The Deputy Attorney General's memorandum *Ending Regulation by Prosecution* directed that the Department not charge unlicensed money-transmitting offenses where the defendant merely wrote or published software and did not knowingly violate a licensing requirement. The Samourai prosecution continued to judgment after that memorandum issued — the clearest sign that clemency, not litigation, is the correct corrective tool.
- **FinCEN's 2019 guidance is unambiguous.** FIN-2019-G001 § 4.5.1 states that an *anonymizing software provider* is **not** a money transmitter, because the provider supplies a tool rather than accepting and transmitting value. Guidance published six years before sentencing squarely covered this conduct.
- **FinCEN's 2023 private advice matched its public guidance.** The August 23, 2023 call — in which senior FinCEN staff told prosecutors that non-custody would strongly suggest Samourai was not an MSB — was not an outlier opinion; it was the agency restating its own rule. Its non-disclosure until April 1, 2025 deprived the defendants of that fact at the charging and plea-negotiation stages, when it mattered most.
- **Sanctions law moved the same way.** Following *Van Loon v. Department of the Treasury* (5th Cir. 2024), Treasury delisted immutable privacy smart contracts in 2025 — official recognition that neutral privacy code is not itself a sanctionable or culpable actor.

26.2 Comparative Outcomes — The Sentences Are Outliers

Matter	Conduct	Custody / Outcome
Samourai (Rodriguez)	Non-custodial wallet software; users held keys	5 years + \$250k fine
Samourai (Hill)	Same; co-author, age 67	4 years + \$250k fine
Binance / CZ	World's largest custodial exchange; BSA program failures; \$4.3B corporate penalty	4 months; pardoned Oct 2025
BitMEX founders	Custodial derivatives exchange; BSA violations	Probation / home detention; pardoned Mar 2025
Ross Ulbricht	Operated the Silk Road marketplace	Life; commuted / pardoned Jan 2025

The pattern is stark: operators who actually held and moved customer money received months, probation, or clemency. The two developers who never touched customer money received years. Clemency here does not create an inconsistency — it removes one.

26.3 Custody Is the Legal Line — and It Was Never Crossed

- 18 U.S.C. § 1960 reaches a business that *transfers funds on behalf of the public*. Samourai's architecture made that impossible: private keys never left the user's device, and no server ever held a spendable balance.
- Whirlpool coordination was a signing-and-broadcast coordination service over transactions the users themselves authorized. A CoinJoin is a single on-chain transaction that every participant signs; no participant's coins can be diverted by the coordinator.
- Ricochet added additional self-owned hops between the user's own addresses — economically, moving money from a person's left pocket to their right pocket.
- The \$6.37 million forfeited was **software fee revenue**, not customer funds and not criminal proceeds. Conflating the DOJ's \$237 million proceeds allegation with the developers' fee income is the single most common briefing error; keep the two numbers apart.
- Every privacy feature operated on a **public ledger** that remained fully available to investigators — Samourai reduced casual linkability, it did not delete records, and chain-analysis firms continued to trace flows through it.

26.4 Constitutional and Fair-Notice Grounds

- **Code is speech.** Since *Bernstein v. U.S. Dep't of Justice*, publishing cryptographic source code has been treated as protected expression. Criminal exposure for authorship chills a category of First Amendment activity that the United States spent the 1990s crypto-wars deciding to protect.
- **Fair notice / due process.** Where the responsible regulator publicly said this category of provider is not a money transmitter, and privately repeated it to prosecutors, ordinary developers had no notice that a license was required. The rule of lenity and the fair-notice doctrine both cut toward the defendants.
- **Brady.** The exculpatory FinCEN communication was disclosed roughly nineteen months after it occurred and only weeks before dispositive motions. A pardon avoids years of collateral litigation over a disclosure failure that the record already shows.
- **Privacy is not suspicion.** *Carpenter* and *Riley* confirm that Americans retain privacy expectations in digital records. Financial privacy on a permanently public ledger is a defensive necessity, not evidence of wrongdoing.

26.5 Practical and Security Facts Staff Should Have Ready

- Bitcoin's ledger is permanent and public. Without privacy tooling, a salary address, a donation, or a merchant payment can expose a user's entire balance and counterparty history to any stranger — a documented driver of physical robbery, extortion, and 'wrench attack' kidnappings against identifiable holders.
- The users protected by these tools include ordinary savers, small businesses shielding payroll and supplier terms, journalists, domestic-violence survivors, and dissidents in authoritarian states.
- Privacy technology is now standard in mainstream finance: bank statements are not public, and the same expectation is what these developers implemented in software.
- Shutting down U.S. builders does not remove the technology — the code is open source, forked, and maintained offshore. The only durable effect of the prosecution is that the engineers, jobs, and jurisdictional oversight move abroad.

26.6 Equities of the Individuals

- Both men are **first-time, non-violent federal offenders** with no allegation of personal enrichment from any underlying crime, no victim restitution ordered to defrauded customers, and no allegation they solicited or directed any predicate offense.
- William Hill is **67 years old**; a four-year federal term carries materially elevated medical and mortality risk and functions as a far heavier sentence than the same term for a younger defendant.
- Both have already suffered forfeiture of fee income, the destruction of their business, seizure of assets, reputational ruin, and extended separation from their families and minor dependents.
- Both accepted responsibility under the lesser count and cooperated with the judicial process; the money-laundering conspiracy count was **dismissed**, so the record does not establish laundering.

26.7 Anticipating the Strongest Objections

Objection	Answer
"Criminals used it."	So do Signal, VPNs, cash, and Excel. Dual-use is not culpability absent proof the developer directed the crime. DOJ's own theory rested on the software's existence, not on any transaction the defendants executed.
"Their marketing was reckless."	Concede the tone without conceding the crime. Bad taste in promotional copy is not a licensing violation, and it does not convert non-custodial software into money transmission.
"A pardon looks soft on money laundering."	The opposite framing is available and true: enforcement resources belong on cartels, custodial launderers, and fraudsters who actually hold victims' money — not on two coders.
"Why not let appeals run?"	The men are in custody now, the disclosure defect is already documented, and DOJ's April 2025 policy would not authorize the charge today. Years of appellate litigation would reach the same place at far greater human cost.

Closing addendum ask: sign the instrument at Section 02 as drafted. It corrects a prosecution the Department's own current policy would not bring, honors guidance the Treasury's own bureau published in 2019, and restores the line between writing software and handling other people's money.

Addendum prepared July 2026 as a supplement to the Samurai Wallet Data Room. Adverse figures are taken from DOJ/IRS-CI public releases; FinCEN and Brady facts from defense primary filings; policy and precedent items from public government documents and contemporaneous reporting.